

which the parish was not bound to afford (a): besides, the appropriation of the fund to the poor not in receipt of parochial relief might still have the effect of conferring a benefit on the rich; for persons who could not otherwise have maintained themselves might, by means of the charity, be prevented from seeking assistance from the rate (b). However, it has been determined in several cases, and seems, therefore, to be now settled, that the charity must be confined to those *not in receipt of parochial relief* (c) (1).

[*533] * 14. **Trust for maintaining "the worship of God."** —

If land or money be given for maintaining "*the worship of God*" (a), or the promotion of "*Godly learning*" (b),

(a) *Attorney-General v. Corporation of Exeter*, 2 Russ. 51-54.

(b) See S. C. 3 Russ. 397.

(c) *Attorney-General v. Corporation of Exeter*, 2 Russ. 47; S. C. 3 Russ. 359; *Attorney-General v. Wilkinson*, 1 Beav. 372; *Attorney-General v. Bovill*, M. R. 1 July, 1839. But see *Attorney-General v. Bovill*, 1 Ph. 768, where Lord Cottenham is reported to have said, "I am inclined to think that the right course is, to

administer the charity, and leave to chance to what extent it may operate to the relief of the poor-rates." The decree, however, seems in the main to be in accordance with the previous decisions; and see *Attorney-General v. Blizard*, 21 Beav. 233.

(a) *Attorney-General v. Pearson*, 3 Mer. 409.

(b) *Re Ilminster School*, 2 De G. & J. 535.

(1) **59 G. 3, c. 12.** — As to *parish property*; by the effect of the decisions on 59 Geo. 3, c. 12, s. 17, all hereditaments belonging to the parish at the time of the Act, or subsequently acquired, whether for a chattel (*Alderman v. Neate*, 4 M. & W. 704) or freehold interest, and though originally conveyed to express trustees for parish purposes, if it be unknown or uncertain in whom the legal estate is vested (*Doe v. Hiley*, 10 B. & C. 885; and see *Churchwardens of Deptford v. Sketchley*, 8 Q. B. 394), or generally where it is unascertained in whom the legal estate is outstanding, but the parish have exercised all the rights of ownership, and the property belongs to them in the popular sense (*Doe v. Terry*, 4 Ad. & Ell. 274; *Doe v. Cockell*, Ib. 478), are now transferred to the churchwardens and overseers of the parish, not indeed as a corporation and having a common seal (*Ex parte Annesley*, 2 Y. & C. 350), but as persons taking, by parliamentary succession, in the nature of a corporation (*Smith v. Adkins*, 8 M. & W. 362).

The Act does not extend to *copyholds* (*Attorney-General v. Lewin*, 8 Sim. 366; *In re Paddington Charities*, Ib. 629), nor to freeholds of which the trusts are not exclusively for the parish, but also embrace other objects (*Allason v. Stark*, 9 Ad. & Ell. 255; *Attorney-General v. Lewin*, 8 Sim. 366; *In re Paddington Charities*, Ib. 629); nor to lands vested in existing trustees, and who are actually in discharge of their duties in that character (*Churchwardens of Deptford v. Sketchley*, 8 Q. B. 394, overruling *Rumball v. Munt*, Ib. 382; and see *Goulsworth v. Knight*, 11 M. & W. 337). However, though all the trusts must be for the parish, they may be directed to some special trust, if exclu-